

Calendar Lines # 8-9
Case Name Christopher Wischmann et al vs George Aleuy et al
Case No. 25CV466345
Motion to Compel Further Responses to Special Interrogatories (Line #8); and Motion to Compel Further Responses to Request for Production of Documents (Line #9); Sanctions
I. <u>BACKGROUND</u> A. BRIEF FACTUAL SUMMARY This business tort claim stems from a Complaint filed in May 2025 by Plaintiffs Christopher Wischmann and Athena Global, LLC (collectively “Plaintiffs”) against Defendants George Aleuy, Robbie Aluey, and GEO Investment Properties, LLC (collectively “Defendants”). Plaintiffs filed its First Amended Complaint (“FAC”) in June 2025, alleging six causes of actions, including: (1) declaratory relief against Defendants; (2) violation of Corporation Code sections 17701.13 and 17704.10 against Defendant George Aleuy; (3) violation of Business and Profession Code section 17200 et seq., against all Defendants; (4) conversion against all Defendants; (5) accounting against Defendant George Aleuy; and (6) injunctive relief against all Defendants. Defendants filed an Answer to the FAC in August 2025 and filed a Cross-Complaint. Plaintiffs filed an Answer to the cross-complaint in September 2025. B. RELEVANT PROCEDURAL SUMMARY Before the Court is Plaintiffs motion to compel Defendant George Aleuy’s further responses to special interrogatories (“SPROG”), set one, No. 25 (Line # 8), and further response to request for production of documents (“RFPD”), set one, No. 27 (Line # 9), and sanctions. Plaintiff filed the motion on January 16, 2026, and the motions were accompanied by a proof of service indicating electronic mail to defense counsel on that same day. Defendants filed an opposition on September 9, 2026. Plaintiffs filed a reply brief on September 15, 2026. The Court has carefully reviewed the following: Plaintiffs’ notice of motion to compel SPROG, set one and memorandum of points and authorities (“MPA”) in support of motion to compel SPROG (totaling 8 pages); Declaration of James J. Huang and attached Exhibits A-C (totaling 58 pages); Declaration of Christopher Wischmann in support and attached Exhibits A-G (totaling 22 pages); separate statement in support of SPROG (totaling 4 pages); Plaintiffs’ notice of motion to compel RFPD, set one and memorandum of points and authorities (“MPA”) in support of motion to compel RFPD (totaling 8 pages); Declaration of James J. Huang and attached Exhibits A-C (totaling 58 pages); Declaration of Christopher Wischmann in support and attached Exhibits A-G (totaling 22 pages); separate statement in support of RFPD (totaling 4 pages); Defendants’ Opposition (totaling 10 pages); Declaration of Dennis Chin and attached Exhibits A-D in support of the Opposition (totaling 124 pages); Plaintiff’s reply brief (totaling 12 pages); proofs of services; and the pleadings. II. <u>LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2017.010: “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.”

For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (*City of Los Angeles v. Superior Court* (2017) 9 Cal.App.5th 272, 288). Where a party objects or responds inadequately to discovery requests, a motion lies to compel further responses, and that party has the burden to justify the objections or inadequate responses. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to a demand for inspection”]). “A trial court’s determination of a motion to compel discovery is reviewed for abuse of discretion. However, when the facts asserted in support of and in opposition to the motion are in conflict, the trial court’s factual findings will be upheld if they are supported by substantial evidence.” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733). “The purpose of the discovery rules is to enhance the truth-seeking function of the litigation process and eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is designed to make a trial less a game of blindman’s bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.” (*Juarez v. Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 389).

A. PROCEDURAL REQUIREMENTS

(1) Timeliness

Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any supplemental verified response, or by a later date agreed-upon in writing, failing which the propounding party waives any right to compel a further response to the interrogatories. (Code Civ. Proc., § 2030.300, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (i.e., it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410).

“Any period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days[.]” (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)).

(2) Meet-and-Confer

“A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1)). “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040).

(3) Separate Statement

California Rules of Court, rule 3.1345 requires that any motion involving the content of discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for why an order compelling further responses is warranted.

B. MOTION TO COMPEL RESPONSES TO FURTHER FORM AND SPECIAL INTERROGATORIES

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within thirty (30) days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411).

Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

C. MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENT

Code of Civil Procedure section 2031.310(b)(1) sets forth that a motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., § 2031.310(b)(1)). In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the Court defined “good cause” as a showing that there “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct.* (2002) 95 Cal. App.4th 92, 98).

III. ANALYSIS

Here, Plaintiff seeks further responses to two discovery requests, specifically, SPROG, No. 25 and RFPD, No. 27 from Defendant George Aleuy. Plaintiff seeks to compel responses regarding Defendant George Aleuy’s medical information in response to SPROG, No. 25 and RFPD, No. 27.

SPECIAL INTERROGATORY NO. 25:

State the name, address and telephone number and e-mail address of each and every individual who has provided you with medical care and/or treatment at any time from December 1, 2024, through the present.

RESPONSE TO SPECIAL INTERROGATORY NO. 25:

Responding Party objects that this interrogatory seeks highly confidential and private medical records protected by the right to privacy under the California Constitution, Article I, section 1, HIPAA, and applicable case law. Responding Party objects to this request is [sic] compound, oppressive, harassing, invasive, irrelevant, and not reasonably calculated to lead to the discovery of admissible evidence.

(Separate Statement, Plaintiffs’ motion to compel SPROG, p. 1-2).

REQUEST NO. 27:

If George Aleuy has been hospitalized at any time from January 1, 2025, and the present, each and every document, including but not limited to medical records, regarding or related to such hospitalization.

RESPONSE TO REQUEST NO. 27:

Responding Party objects that this request seeks highly confidential and private medical records protected by the right to privacy under the California Constitution, Article I, section 1, HIPAA, and applicable case law. Responding Party objects to this request is [sic] harassing, invasive, irrelevant, and not reasonably calculated to lead to the discovery of admissible evidence.

(Separate Statement, Plaintiffs’ motion to compel RFPD, p. 1-2).

First and foremost, the Court looks at the procedural requirements and finds that the motion was timely filed, within 45 days upon receipt of the responses. Parties met and conferred about the discovery at issue from November 17- December 29, 2025. (Declaration of Huang (“Huang Decl.”), ¶¶ 2-4; Exhibits A-C). The motions

were also accompanied by separate statements in compliance with Rules of Court, rule 3.1345. The Court will consider the merits of the motions.

Plaintiffs served Defendant George Aleuy with initial written discovery, including the discovery at issue on November 5, 2025. (Huang Decl., ¶; Exhibit B). Defendant George Aleuy served responses that the plaintiff asserts are meritless objections. (Plaintiffs' MPA, p. 3). Attorneys for the parties met-and-conferred regarding SPROG, No. 25 and RFPD, No. 27 on December 29, 2025. Plaintiffs assert that Defendant George Aleuy's medical setbacks and hospitalization from November 2024 through 2025 impaired his operational duties as the manager of CGRE LLC ("CGRE"). (*Id.*, p. 3-4; Complaint ¶¶ 13-15). Defendant George Aleuy's medical disability and resulting incapacity, prevented him from carrying out his duties as CGRE's managing member, which justifies Athena Global's expulsion of Defendant George Aleuy. (*Id.*, p. 5; Complaint ¶¶ 14-20). Between November 2024 through January 2025, Plaintiff Christopher Wischmann did not receive responses to substantive texts or emails regarding CGRE from Defendant George Aleuy. (Wischmann Decl., ¶¶ 7 and 11). Plaintiff learned about Defendant George Aleuy's medical condition, including gall bladder surgery, tracheotomy, and hospitalization in January 2025. (*Id.*, at ¶¶ 9-15). Plaintiff asserts that Defendant George Aleuy was entirely absent from managing CGRE properties through April 2025. (*Id.*, at ¶¶ 16-17). Defendant George Aleuy has been nonresponsive to Plaintiff's communication since December 9, 2024. (*Id.*, at ¶ 18). Thus, Plaintiffs seeks limited information to facts leading up to the expulsion and the declaratory relief actions plaintiffs pursued. (*Id.*). Plaintiffs also emphasizes, that the information directly refutes Defendant George Aleuy's claims that his expulsion were improper. (*Id.*, p. 5; Complaint ¶¶ 16, 18-20). Further, Plaintiff argues that Defendant George Aleuy's medical condition pertains to the relief he seeks in his cross complaint. (*Id.*, at p. 5).

In opposition, Defendant George Aleuy argues that the motion should be denied, as Plaintiffs' motion to compel further responses to SPROG, No. 25 and RFPD, No. 27 are irrelevant, private, harassment, invasive, and unreasonable. (Opposition, p. 1-2). Defense asserts that George Aleuy was not managing the properties of CGRE, but rather his son Robbie Aleuy was handling the operation duties as a manger of CGRE. Defense asserts that in its FAC, Plaintiff accepted responses to concerns that came from Robbie Aleuy. (Declaration of Chin ("Chin Decl."), ¶¶ 2-3). Defendant George Aleuy's medical condition has no bearing on CGRE's daily property operations, which were handled by GEO Investment Properties, LLC ("GEO") or on the validity of Plaintiff's attempted expulsion which turns on the Operating Agreements. (Opposition, at p. 3-5). Defendant asserts it has provided timely and complete responses to discovery. (*Id.*, at p. 6). Defendant also argues that George Aleuy's medical condition has no bearing on his request for reinstatement. (*Id.*, at p. 7). Defense also avails that the discovery is overbroad, not narrowly tailored e.g. fails to limit hospitalization, period of incapacity, subject matter, diagnosis, or connection any operational issues at CGRE, and the defendant is entitled to privacy protections. (*Id.*, at p. 8). Thus, Defendant seeks an order denying plaintiffs' motions to compel SPROG 25 and RFPD 27, deny Plaintiffs' request for sanctions, and impose sanctions in favor of the defendant in the amount of \$6,000.00. (Chin Decl., ¶¶ 7-9).

Plaintiffs' counsel rejects defense's arguments on relevancy and asserts that Defendant George Aleuy's medical issues, undergoing a tracheotomy and requiring respiratory assistance, from November 2024 through 2025 impacted his ability to communicate and is material and relevant. (Declaration of Wischmann ("Wischmann Decl."), ¶¶ 9-10, 12-15).

In response to defense's privacy objections, Plaintiffs emphasizes it offer to limit the medical information sought and a protective order to address Defendant George Aleuy's concerns. (Plaintiffs' MPA, p. 3 and 5; Huang Decl., ¶ 4). Plaintiff also asserts that Defendant George Aleuy places his medical condition at issue, per the relief he seeks, including reinstatement, in his cross complaint. (*Id.*, at p. 6). Plaintiffs also reject defense's HIPPA objection as meritless on the grounds that no party is subject to HIPPA as a covered entity. Plaintiffs seeks an order limiting the medical information to a one-year period. (*Id.*). Plaintiffs references efforts to accommodate Defendant George

Aleuy and seeks sanctions for his refusal to provide relevant medical information. (*Id.*, at p. 4). Plaintiffs avail that defense has no substantial justification in withholding Defendant George Aleuy's limited medical documents or information. (*Id.*, at p. 6). Defense asserts that a protective order does not cure George Aleuy's privacy rights against the request for overbroad medical information. (Opposition, at p. 9).

In reply, Plaintiffs asserts that defense refuses to produce any medical documentation or information that would either explain or confirm George Aleuy's absence from operational duties. (Reply, at p. 2). Plaintiffs emphasis that a legally incapacitated managing member cannot operate or make binding decisions. (*Id.*, at p. 1). Plaintiff asserts that serious operational issues arose in in late 2024 and Defendant George Aluey failed to provide responses to Plaintiff. (*Id.*, at p. 2). Defendant was hospitalized and unable to per form his "non-delegable obligations as CGRE's manager. (*Id.*,; FAC ¶¶15 and 17). Plaintiffs also avers that relevant evidence can pertain to the evidence of a witness or hearsay declarant in this matter given the cross complaint on the validity of expulsion and whether George Aluey is fit to serve as CGRE's managing member given the claim for reinstatement. (Reply, at p. 4-6). Plaintiffs assert that SPROG, No. 25 and RFPD, No. 27 are narrowly tailored and that a protective order may protect against disclosure of relevant sensitive information. (*Id.*, at p. 7-8). Based on defenses refusal to produce relevant discovery the Plaintiff reasserts its request for sanctions. (*Id.*, at p. 10).

Here, the Court finds that Plaintiffs have made a good cause showing that a disputed fact that is of consequence in the action and that SPROG No. 25 and RFPD No. 27 tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224). The discovery requests seek information to prove or disprove facts or lead to evidence that will prove or disprove facts relating to the claims asserted against Defendant George Aluey for accounting, injunctive relief, conversation, declaratory relief, and violations of Corporation Code sections 17701.13 and 17704.10 and Business and Profession Code section 17200 et seq. Further, it also relates to affirmative defenses against Defendant George Aluey's cross complaint. Accordingly, the Court will grant the motion to compel further responses to SPROG 25 and RFPD No. 27. However, the Court deems that further narrowing of the scope of information and time as noted in defense's objections to be apt, and narrows the further responses as follows:

SPECIAL INTERROGATORY NO. 25:

State the name-and address of medical providers who have provided medical care and/or treatment from December 1, 2024 to April 30, 2025 for surger[ies] or treatment that rendered YOU [George Aleuy] incapacitated (i.e., unable to communicate or make decisions, and be cleared for work by medical professionals).

REQUEST NO. 27:

George Aluey's hospitalization records from December 1, 2024 to April 30, 2025 pertaining surger[ies] or treatment that rendered YOU [George Aleuy] incapacitated (i.e., unable to communicate or make decisions, and be cleared for work by medical professionals).

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: "(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)."

Pursuant to California Code of Civil Procedure section 2030.030, a propounding party may bring a motion for monetary, issue, evidentiary, or terminating sanctions against any party that is engaging in misconduct in the discovery process. “Only two facts are absolutely prerequisite to imposition of a discovery sanction: (1) there must be a failure to comply, and (2) the failure must be willful [sic].” (*Valencia v. Mendoza* (2024) 103 Cal. App. 5th 427, 447, review denied (Oct. 16, 2024) (citing *Vallbona v. Springer* (1996) 43 Cal. App. 4th 1525, 1545 and *Karlsson v. Ford Motor Co.* (2006) 140 Cal. App. 4th 1202, 1214–15).

Plaintiffs’ counsel seeks Defendants seek a total of \$4,635.00 for *each* of the motions to compel based on nine hours of work on *each* motion preparing and filing the motions at an hourly rate of \$515.00. (Huang Decl. ¶ 5). In total, for the motions to compel SPROG and RFPD, Plaintiff’s counsel seeks \$9,270.00.

In opposition, defense argues that sanctions are unwarranted and Defendant George Aleuy’s objections were substantially justified based on privacy rights under the Constitution and based on a genuine good-faith dispute over the scope and relevancy of the information sought. (Opposition, p. 9). Defense asserts that Plaintiff fails to make a requisite showing of relevancy and disregards the Operating Agreement’s default and voting procedures. (*Id.*, at p. 9-10). Defense requests that Plaintiffs’ motion for sanctions be denied and seeks imposition of sanctions against the Plaintiffs for a total of \$6,000.00. (Chin Decl., ¶¶ 7-9). Defense counsel seeks 1.5 hours for reviewing Plaintiffs’ motion, 3.6 hours for legal research, 1.5 hours for review of CGRE Operating agreement, 4.0 for drafting opposition briefs, and anticipated 1.5 hours to appear for the motions. (*Id.*). Defense counsel seeks an hourly rate of \$500.00. (*Id.*).

Upon review, the Court finds that parties were engaged in a genuine discovery dispute, and defense had substantial justification to object to the discovery as propounded. Thus, the Court exercises its discretion and will not impose sanctions. Plaintiffs motion for sanctions is DENIED. Defendant’s motion for sanctions is DENIED.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel further responses to SPROG No.25 and RFPD No. 27 as modified below. Defendant is to provide verified code-compliant responses within thirty (30) days of this hearing.

SPECIAL INTERROGATORY NO. 25:

State the name-and address of medical providers who have provided medical care and/or treatment from December 1, 2024 to April 30, 2025 for surger[ies] or treatment that rendered YOU [George Aleuy] incapacitated (i.e., unable to communicate or make decisions, and be cleared for work by medical professionals).

REQUEST NO. 27:

George Aleuy’s hospitalization records from December 1, 2024 to April 30, 2025 pertaining surger[ies] or treatment that rendered YOU [George Aleuy] incapacitated (i.e., unable to communicate or make decisions, and be cleared for work by medical professionals).

Parties are to meet and confer about a protective order and submit a stipulated order.

Motion for sanctions requested by Plaintiffs is DENIED. Motion for sanctions requested by Defendant is DENIED. The Court will prepare the formal Order.

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Calendar Line # 10
Case Name Raymond Harris vs Ford Motor Company et al
Case No. 25CV468861
Judgment on the Pleadings Before the court is defendant Ford Motor Company’s motion for judgment on the pleadings. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. <u>I. BACKGROUND</u> On or about May 21, 2022, plaintiff Raymond H. Harris (“Harris”) entered into a warranty contract with defendant Ford Motor Company (“Ford”) regarding a 2022 Ford Maverick vehicle, vehicle identification number 3FTTW8E36NRA62829 (“Subject Vehicle”) manufactured and/or distributed by defendant Ford. (Complaint, ¶¶7 – 8 and Exh. A). Defects and nonconformities to warranty manifested themselves within the applicable express warranty period including, but not limited to, engine defects, transmission defects, electrical defects, among other defects and non-conformities. (Complaint, ¶12). Plaintiff Harris alleges defendant Ford concealed a known defect from her. (Complaint, ¶52). The 2.5L engine and/or its related components installed in the Subject Vehicle suffer from one or more defects that can result in the loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine (“Engine Defect”). (Complaint, ¶53). Prior to sale of the Subject Vehicle, defendant Ford knew or should have known about the Engine Defect through its exclusive knowledge of non-public, internal data including pre-release test data, early consumer complaints to defendant Ford’s dealers, dealership repair orders, testing conducted in response to complaints, and other internal sources of information possessed exclusively by defendant Ford and its agents. (Complaint, ¶¶57, 59, 62, 63, 64, 65, 76). Nevertheless, defendant Ford and its agents actively concealed the Engine Defect and failed to disclose this defect to plaintiff at the time of his purchase of the Subject Vehicle or thereafter. (<i>Id.</i>). Defendant either refused to acknowledge the existence of the defects or performed superficial and ineffectual repairs that masked the symptoms of the Engine Defect. (Complaint, ¶¶59, 75, 77, 78). If plaintiff knew about these defects at the time of sale, plaintiff would not have purchased the Subject Vehicle. (Complaint, ¶60). On June 23, 2025, plaintiff Harris filed a complaint against defendant Palm Springs Ford (“PS Ford”) asserting causes of action for: (1) Violation of Subdivision (d) of Civil Code Section 1793.2 [against defendant Ford] (2) Violation of Subdivision (b) of Civil Code Section 1793.2 [against defendant Ford] (3) Violation of Subdivision (a)(3) of Civil Code Section 1793.2 [against defendant Ford] (4) Breach of the Implied Warranty of Merchantability [against defendant Ford] (5) Negligent Repair [against defendant PS Ford] (6) Fraudulent Inducement – Concealment [against defendant Ford] On October 22, 2025, defendant Ford filed an answer to plaintiff Harris’s complaint. On November 6, 2025, defendant PS Ford filed an answer to plaintiff Harris’s complaint. On July 16, 2026, defendant Ford filed the motion now before the court, a motion for judgment on the pleadings directed at plaintiff Harris’s sixth cause of action for fraudulent inducement – concealment. <u>II. LEGAL STANDARD</u>